



SOURCES OF PATENT COPIES

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SOURCES OF PATENT COPIES

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ABSTRACT. The author draws on her eighteen years of experience in working with patents in describing the role played by both commercial and non-commercial sources of patents and documents related to patents. Costs and speed of service are factors considered in evaluating sources.

Background

Copies of United States or foreign patent applications and/or patents are required by many public or private organizations, particularly for insight into proprietary information or for litigation purposes. This was made very clear to the author during the years she worked for the Patent Division of the Shell Development Company, which at that time had the largest collection of United States patents arranged in classified order outside of the U.S. Patent Office. She also became familiar with foreign patents maintained at that company. Her experience at that job has led to her continued conviction of the importance of patents and also made her aware of the difficulties many librarians are apt to encounter in trying to locate patents, particularly when time is limited. In the hope of providing helpful information about the best sources for various kinds of patents this article has been prepared.

The heaviest demand for patents comes from companies engaged in various fields of competitive research. Frequently patent references are required in a hurry; research and development schedules as well as legal response dates cannot be changed because of a lack of patent references. Ideally organizations would like to have a complete library of reference materials on hand, but the cost of storage space for originally printed "soft copy" documents is becoming

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increasingly expensive. Even microfilm and microfiche storage and the machines required to reproduce copies from these microforms are increasing in cost. Obtaining copies of patent references is not difficult if sufficient time is available. However, getting them rapidly can be another story, and a fairly costly one too, unless one is located in or near the Washington, DC area. This article is for the rest of us, who live elsewhere.

Types of Sources

There are two sources of foreign and domestic patents—commercial firms and not-for-profit organizations. The latter includes government agencies and certain libraries. Government agencies are characterized by inexpensive service which, however, generally does not allow for speedy handling for those needing materials as quickly as possible.

The largest public libraries in the United States are usually those with patent collections of significance, as are certain universities. An interesting exception to this class of libraries is the Sunnyvale (California) Patent Information Clearing House, a city-supported collection of U.S. patents, which has the only patent collection arranged by the United States Patent Classification outside the Washington area. When classification is changed by the U.S. Patent Office, Sunnyvale does not reclassify its holdings. Tracing a subject through these changes is difficult and tedious, but help is available from skilled patent librarians.) Sunnyvale is also an exception in that it has a rush service available at a fee of \$5.00 per order in addition to the usual charge of \$2.00 per patent. A description of the Sunnyvale service is shown in Figure 1.

The role of the U.S. Patent Office and its depository libraries is described in the following sections. The important patent collection of the New York Public Library is described in a recent article.¹

There are several private commercial firms which offer speedy service, although their fees are not low. However, they have many customers who demand expeditious handling and can afford to pay the costs. One example is Rapid Patent Service, 2221 Jefferson Davis Highway, Arlington, VA 22202. This company maintains no patent copies, but relies on the collection of the U.S. Patent and Trademark Office, dating back to 1790, which includes patents from many European countries and members of cooperative patent groups, as explained later in this paper. Besides formal patents it



Sunnyvale Patent Information Clearinghouse

Background

The Sunnyvale Patent Information Clearinghouse is the only subject-classified collection of United States Patents outside of Washington, D.C. In the early 60's Jack Bohan, a young patent attorney, recognized the need for a patent information center in Santa Clara County. The City of Sunnyvale accepted the challenge of establishing a classified patent library in 1965 and has supported this specialized and unique collection of information which began with United States Patent #3,015,103. In 1980, responding to requests for patents prior to January, 1962, the City of Sunnyvale contracted to provide on microfilm

in numerical order United States Patents from #1 which was issued in 1790. The Clearinghouse also recently received a major grant from the National Bureau of Standards to establish an inventor information resource center. A complete file of United States patents is now available.

Patent Searches

Patrons are invited to perform patent searches. The library is a self search center where patrons are guided in patent searching by qualified staff. The Report of the Commissioner of Patents from 1790-1835 and the Official Gazette from 1836 to the present are available, along with necessary materials for conducting a trademark search, and the name of an inventor or Company. Research materials at the Sunnyvale Patent Information Clearinghouse are utilized by patrons from the fifty United States and some foreign countries.

Copy Services

Coin-op self-operating copy machines are on the premises.

Photocopy service is provided by establishing a Deposit Account of \$15.00 minimum. A letter of authorization is required on company letterhead including the names of persons authorized to order copies of patents. Telephone or mail orders are processed daily.

FIGURE 1.

relies on Patent Office and commercial files of related documents, such as reissued patents, certificates of correction, disclaimers, withdrawals and similar papers. Subscriptions to requested classes of U.S. patents are available, as are tailor-made groupings to suit customers' needs. Rush service is readily available for a fee. The price list of this firm is typical of commercial rates, as shown in Figure 2.

Another commercial firm which provides patent service is INFO/DOC, Box 17109, Dulles International Airport, Washington, DC 20041. Both foreign and domestic patents are available. Rush service is given through the media of telephone, telex and online means.

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FIGURE 2.

Derwent Publications, Ltd, located in London, has become an internationally known source of foreign patents; as well as an important source of indexing services and online databases devoted to patents. A recent article by a member of that firm describes their services fully.²

For those subscribers to the service of Derwent Publications, Ltd., time is not a problem. Subscribers have found that Derwent has an excellent collection of patents on film, as well as an excellent alerting service in fields of interest. First issuing ("basic") patents in the major countries: issuing printed patent specifications are provided to subscribers of the microfilm service within approximately six weeks of receipt at Derwent, in London. Equivalents in the English language (principally United States and British patents) are provided within six weeks of receipt at Derwent after issuance. Normally, the copies made from the microfilm are as good as the original document. Thus, having the Derwent microfilm or microfiche in one's own files as a subscriber is perhaps one of the quickest means of obtaining copies of patents. For further information about Derwent Publications, Ltd., contact the McLean, Virginia office at 6845 Elm Street, Suite 500, McLean, VA 22101, telephone (703) 790-0400, or Derwent Publications, Ltd., Rochdale House, 128 Theobalds Road, London, WC1X 8RP England.

Commercial firms offering patent service are fairly numerous, so the few mentioned here are merely representative of the group of private sources of such service, featuring both U.S. and foreign patents, with special orders and/or subscription service available. Some companies are affiliated with certain database vendors and can receive orders electronically when searchers are online, thus saving additional time taken up by requestors with preparing requests which would have to be sent by slower means than the online method provides.

U.S. Patents

U.S. Patent Office

The United States Patent and Trademark Office, a part of the Department of Commerce, can provide copies of United States patents, abandoned applications, and Defensive Publications. The Scientific Library, within the United States Patent Office, can provide patents and applications from most of the major countries of the world, provided, of course, that the country prints its patents. Cop-

ies are reproduced either from microfilm provided by Derwent Publications, Ltd. (London), or from "soft copies" of patents received by the U.S. Patent Office on a reciprocal arrangement with other patent offices around the world.

U.S. patents issue in printed form every Tuesday, every week of the year, holidays included. Copies of the printed specifications are available at the Patent Office on the same day as they issue. The Government Printing Office normally prints an initial stock order of one hundred copies of most patents, plus those additionally ordered by the patentee and for customers wishing all copies of patents issuing in certain classes and subclasses. When the supply of these printed "soft copies" (patents printed by the Government Printing Office, and printed on both sides of the paper) are "exhausted" (when the supply of "soft copies" has been used), no further runs will be made. Consequently, thereafter, when copies of patents are requested, photocopies are supplied, and quality tends to decrease.

"Jumbo" patents, i.e., those patents forty pages or more can only be ordered from the Patent Office at a premium per page charge once the supply of originally printed copies become "exhausted." The present Patent Office charge for these "jumbo" patents is 30¢ per page. The original printed copies of "jumbo" patents cost the usual charge of 50¢ per patent. The United States Patent Office is required to forward patent copies ordered on a routine basis within fifteen days of receipt of the order at the Patent Office. Patent copies are presently being forwarded by fourth class mail (on an experimental basis for six months), which may delay delivery of ordered copies by only a few days more than orders forwarded via first class mail. Approximately one month must be allowed for patents routinely ordered through the United States Patent and Trademark Office. Expedited service is available for an extra 50¢ per patent (or an extra coupon for each patent ordered). Books of coupons can be purchased from the Patent Office, thus simplifying order procedures.

Depository Libraries

United States patents are also available at thirty-seven public and private libraries, designated as Patent Depository Libraries, all available for public use, in twenty-five states in the United States. (See Figure 3) Additionally available at these libraries are the Man-

Reference Collections of U.S. Patents Available for Public Use in Patent Depository Libraries

The libraries listed herein, designated as patent depository libraries, receive current issues of U.S. Patents and maintain collections of earlier issued patents. The scope of these collections varies from library to library, ranging from patents of only recent months or years in some libraries to all or most of the patents issued since 1870, or earlier, in other libraries.

These patent collections are open to public use and each of the patent depository libraries, in addition, offers the publications of the patent classification system (e.g. The Manual of Classification, Index to the U.S. Patent Classification, Classification Definitions, etc.) and provides technical staff assistance in their use to aid the public in gaining effective access to information contained in patents. With one exception, as noted in the

table following, the collections are organized in patent number sequence.

Depending upon the library, the patents may be available in microfilm, in bound volumes of paper copies, or in some combination of both. Facilities for making paper copies from either microfilm in reader-printers or from the bound volumes in paper-to-paper copies are generally provided for a fee.

Owing to variations in the scope of patent collections among the patent depository libraries and in their hours of service to the public, anyone contemplating use of the patents at a particular library is advised to contact that library, in advance, about its collection and hours, so as to avert possible inconvenience.

State	Name of Library	Telephone Contact
Alabama	Birmingham Public Library	(205) 254-2555
Arizona	Tempe: Science Library, Arizona State University	(602) 963-7607
California	Los Angeles Public Library	(213) 626-7555 Ext. 273
	Sacramento: California State Library	(916) 322-4372
	Sunnyvale: Patent Information Clearinghouse*	(408) 738-3580
Colorado	Denver Public Library	(303) 373-5152 Ext. 222
Delaware	Newark: University of Delaware	(302) 738-2238
Georgia	Atlanta: Price Gilbert Memorial Library, Georgia Institute of Technology	(404) 894-4519
Illinois	Chicago Public Library	(312) 269-2814
Louisiana	Baton Rouge: Troy H. Middleton Library, Louisiana State University	(504) 388-2370
Massachusetts	Boston Public Library	(617) 536-5400 Ext. 265
Michigan	Detroit Public Library	(313) 833-1450
Minnesota	Minneapolis Public Library & Information Center	(612) 372-6552
Missouri	Kansas City: Linda Hall Library	(816) 363-4600
	St. Louis Public Library	(314) 241-2288 Ext. 214, 215
Nebraska	Lincoln: University of Nebraska-Lincoln, Engineering Library	(402) 472-3411
New Hampshire	Durham: University of New Hampshire Library	(603) 862-1777
New Jersey	Newark Public Library	(201) 733-7814
New York	Albany: New York State Library	(518) 474-5125
	Buffalo and Erie County Public Library	(716) 856-7525 Ext. 267
	New York Public Library (The Research Libraries)	(212) 930-0850
North Carolina	Raleigh: D. H. Hill Library, N.C. State University	(919) 737-3280
Ohio	Cincinnati & Hamilton County, Public Library of Cleveland Public Library	(513) 369-6936
	Columbus: Ohio State University Libraries	(614) 422-6286
	Toledo/Lucas County Public Library	(419) 253-7053 Ext. 212
Oklahoma	Stillwater: Oklahoma State University Library	(405) 624-6546
Pennsylvania	Philadelphia: Franklin Institute Library	(215) 448-1321**
	Pittsburgh: Carnegie Library of Pittsburgh	(412) 622-3138
	University Park: Pattee Library, Pennsylvania State University	(814) 865-4861
Rhode Island	Providence Public Library	(401) 521-7722 Ext. 226
South Carolina	Charleston: Medical University of South Carolina	(803) 792-2372
Tennessee	Memphis & Shelby County Public Library and Information Center	(901) 528-2957
Texas	Dallas Public Library	(214) 748-9071
	Houston: The Fondren Library, Rice University	(713) 527-8101 Ext. 2587
Washington	Seattle: Engineering Library, University of Washington	(206) 543-0740
Wisconsin	Madison: Kurt F. Wendt Engineering Library, University of Wisconsin	(608) 262-6845
	Milwaukee Public Library	(414) 278-3043

*Collection organized by subject matter.

**Call only between the hours of 10:00 a.m. and 5:00 p.m.

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FIGURE 3.

ual of Classification, the Index to the Patent Classification, and the Classification Definitions. As resources and facilities improve, the thirty-seven Patent Depository Libraries around the nation will begin to take on the character of satellite search centers. The Patent and Trademark Office is now in the process of making available to

these depository libraries the same online access to the classification database now available only in the Patent and Trademark Office Public Search Room.

In all but one of these depositories, the patents are arranged in numerical order. (As previously mentioned, in the Patent Information Clearinghouse, Sunnyvale, California, the patents are arranged by the United States Patent Classification.)

Foreign Patents

Canadian Patents

Canadian patents, like patents published in the United States, issue each Tuesday of the year. Again, holidays are no exception. Patents ordered directly from Canada cost either \$2.00 or \$3.00 each plus postage. Patents numbered 1 to 445,930 cost \$2.00 each. Patents numbered 445,931 to date are \$3.00 each in the United States. Patents from Canada should be ordered directly from Micromedia Limited, 165 Hotel de Ville, Hull, Quebec J8X 3X2 if numbered 445,931 to date. Those patents numbered 1 through 445,930 should be ordered by writing directly to the Commissioner of Patents, Ottawa-Hull, Canada K1A 0E1. Patents are forwarded within 48 hours of receipt of order from Micromedia Limited. Deposit accounts are available, and may be opened with a minimum deposit of \$100.00. Further information may be obtained by writing to Micromedia Limited at the address noted above.

British Patents

British patents are available on a fairly short-term basis for deposit account customers, or those sending a check with their order, from the Carnegie Library of Pittsburgh, Pennsylvania, and the Los Angeles Public Library in Los Angeles, California. The individual libraries should be contacted for information on their services.

Foreign Countries Without Printed Specifications

A number of foreign countries, issuing up to 10,000 patents each year, do not issue printed specifications. These countries are: Argentina, Brazil, Mexico, South Africa and Spain. Copies of patents

from these countries are actually copies of the typed specification with changes frequently indicated on the original in ink. Rapid Patent Service is a good source for foreign patents, but a price quotation can and should be obtained prior to placing an order.

European Patents (EPC)

The European Patent Convention presently comprises the following contracting states: Austria, Belgium, France, Federal Republic of Germany, Italy, Liechtenstein, Luxembourg, Netherlands, Sweden, Switzerland and the United Kingdom. The Convention was formed to protect inventions in the contracting states and at the same time make it easier and less expensive than filing individually in each of the above countries.

Patent applications are published eighteen months from date of deposit (filing). These applications may be in any *one* of the following languages: English, French or German. Copies of these printed European patent applications may be obtained through or at the Scientific Library at the United States Patent and Trademark Office or through Research Publications, Inc., Rapid Patent Service.

Patent Cooperation Treaty (PCT)

The Patent Cooperation Treaty, to which the United States is a signator, also provides protection for inventions in member countries more easily and less expensively than filing individually in each country. There are presently thirty-one member states.

A few of the major member states besides the United States are: the Federal Republic of Germany, Switzerland, United Kingdom, France, Belgium, Soviet Union, Sweden, Japan, Netherlands, Norway, and Australia. Applications may be filed in various languages, but only the following languages may be used for the printed applications: English, French, German, Japanese, or Russian. Applications filed in other languages will be translated and published in English. Applications are published eighteen months after the expiration of the priority date of each application. Copies of printed Patent Cooperation Treaty applications may also be obtained through or at the Scientific Library of the United States Patent and Trademark Office or through appropriate commercial services.

Conclusion

It is the opinion of the author that those seeking copies of patents must become familiar with the resources of both commercial and non-commercial agencies, learning which particular one is best for given patent materials according to the amount of time available and the type of material needed.

REFERENCES

1. Krupp, Robert G.; Hill, Richard L. Patent and trademark collections of the New York Public Library. *Science & Technology Libraries*. 2(2):55-60; 1981 Winter.
2. Oppenheim, Charles. The Past, Present and Future of the Patents Services of Derwent Publications Ltd. *Science & Technology Libraries*. 2(2):23-31; 1981 Winter.